



CHAPTER ix.

An Act for uniting the ecclesiastical parish of Holy Trinity Portsea with one or more contiguous parishes and for authorising and carrying into effect an agreement between the Bishop of Winchester and the Admiralty for the sale of the church and vicarage house of Holy Trinity Portsea and for the disposal of the purchase-money and the endowments of the benefice and for other purposes connected therewith. [30th June 1905.] A.D. 1905.

WHEREAS it is expedient that the ecclesiastical parish of Holy Trinity Portsea should cease to be a separate ecclesiastical parish and should be annexed to or divided between one or more contiguous ecclesiastical parishes or districts and that the church and vicarage of Holy Trinity Portsea and the land whereon that church and vicarage stand and other lands vested in the vicar of Holy Trinity Portsea should be sold and that the proceeds of sale and the emoluments of the benefice should be applied for the benefit of other churches and benefices in Portsmouth :

And whereas the Admiralty are desirous of acquiring the said lands for the purposes of the barracks which under the Naval Works Act 1895 and the Acts amending and extending that Act they are authorised to construct :

And whereas the Bishop of Winchester with the consent of the Ecclesiastical Commissioners and the patron of the benefice has agreed with the Admiralty that the said lands church and vicarage house should be acquired by the Admiralty on such terms as are hereinafter contained :

And whereas the purposes aforesaid cannot be carried into effect without the authority of Parliament :

And whereas there is at present no incumbent of the benefice :

A.D. 1905.
—

And whereas plans of the said lands have been deposited with the clerk of the peace of the county of Southampton and with the town clerk of the borough of Portsmouth (which plans are in this Act referred to as “the deposited plans”):

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title.

1. This Act may be cited as the Holy Trinity Portsea Act 1905.

Scheme for
annexation
of parish and
application
of purchase-
money &c.

2.—(1) The Ecclesiastical Commissioners shall prepare a scheme making provision for—

(A) The annexation of the ecclesiastical parish of Holy Trinity Portsea to any other ecclesiastical parish or district contiguous thereto or partly to one such parish or district and partly to another;

(B) The application of any purchase-money received by them under this Act (after paying thereout any expenses incurred under this Act by the Commissioners and any costs and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing this Act incurred by the bishop and after making such provision as to the Commissioners may seem just for the compensation of the parish clerk and other parish officers affected by this Act) towards the purchase of sites for and the erection of new churches mission halls or parish rooms or parsonages in Portsmouth or towards the restoration enlargement or maintenance of the fabric of any existing churches or parsonages in Portsmouth;

(C) The application of any endowments belonging to the benefice of Holy Trinity for the benefit of any new benefice or benefices in Portsmouth created after the passing of this Act or of any existing benefice or benefices in Portsmouth in such manner as the Commissioners think fit;

(D) The care and preservation of any deeds muniments and records belonging to the parish;

(E) Any other matters for which in the opinion of the Commissioners provision ought to be made:

And the scheme may contain any incidental consequential or supplemental provisions which may appear to be necessary or proper for the purposes of the scheme including such provisions as may be necessary for ascertaining and making payable to the Ecclesiastical Commissioners any sums which under sections twenty-nine to thirty-six of the Ecclesiastical Dilapidations Act 1871 would but for this Act have been payable to a new incumbent and for enabling the Commissioners to apply such sums to any of the purposes to which the said purchase-money is applicable.

A.D. 1905.

34 & 35 Vict.
c. 43.

(2) A scheme so prepared shall be valid if and so far as it is confirmed by an Order in Council and an Order in Council may confirm the scheme with or without modification and the Order shall be published in the London Gazette and when so published shall have effect as if enacted in this Act.

3. As soon as a scheme under this Act has been so confirmed as aforesaid and the Admiralty have paid to the Ecclesiastical Commissioners such sum as may be agreed on between the Admiralty and the Bishop of Winchester with the consent of the Commissioners and the patron of the benefice the lands delineated on the deposited plans together with the church and vicarage house of Holy Trinity Portsea and all other buildings (if any) thereon shall vest in the Admiralty and the benefice of Holy Trinity Portsea shall cease to exist and the acquisition of the said lands shall be deemed to be an acquisition of land under the Naval Works Act 1895 and the Acts amending and extending that Act.

Sale of lands
&c.

4. Nothing in this Act or in any scheme or order under this Act shall affect the right to the benefit of any charity.

Saving for
charities.

Printed by EYRE and SPOTTISWOODE,

FOR

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